

Smt. Raisa Begum v. Purvanchal Vidyut Vitran Nigam Ltd. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 1 February 2023 · WRIT - C No. - 2638 of 2023 · **Disposed after recovery withdrawn; fresh order under Supply Code**

HEADNOTE

On the licensee's statement that the theft-recovery demand dated 19.09.2022 stood withdrawn and that a fresh order would be passed after hearing, the writ was disposed of with liberty to pass that order after following the procedure prescribed under the Electricity Supply Code, 2005. The court did not decide the demand or the theft allegation.

FACTUAL SUMMARY

Smt. Raisa Begum petitioned the Allahabad High Court against Purvanchal Vidyut Vitran Nigam Ltd. and two others to quash a demand notice of 19 September 2022 issued by respondent no. 2 for electricity charges in a theft case. On 25 January 2023 the department's counsel sought time for instructions and the writ was listed afresh. On 1 February 2023 counsel stated that the impugned recovery had been withdrawn and that a fresh order would follow after the petitioner was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

fresh order after withdrawal of theft-recovery demand

HOLDING

Where the licensee withdraws the impugned recovery of electricity charges in a theft case and states that a fresh order will be passed after hearing the consumer, the writ seeking quashing of that demand is disposed of, with liberty to the licensee to pass the fresh order after following the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1-2

FLAG The order directs compliance with the procedure prescribed under the Electricity Supply Code, 2005, and states no clause number.

PRINCIPLE TAGS

UP-2005::procedure The writ was disposed on the licensee's statement that the 19.09.2022 theft recovery stood withdrawn, leaving a fresh order to be passed only after hearing and after the procedure prescribed under the Electricity Supply Code, 2005. No clause was identified or construed. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 19.09.2022 AND THE ALLEGATION OF THEFT OF ELECTRICITY

The licensee withdrew the recovery. The court left a fresh order to be passed after hearing and did not rule on the demand or the theft. ¶ 1-2